



EU AI ACT

REGULATION (EU) 2024/1689



The world's first comprehensive AI regulation. Entered into force August 2024.
Operational deadline: 2 August 2026. [Read on EUR-Lex](#)

KEY FACTS

Scope

Anyone placing, deploying, or distributing AI systems in the EU market, including non-EU companies.
Extraterritorial reach, similar to [GDPR's Brussels Effect](#).

Approach

Risk-based classification: 4 risk tiers (Unacceptable to Minimal).
Separate rules for General Purpose AI (GPAI) models.

Penalties

- Prohibited AI: €35M or 7%.
 - High-risk: €15M or 3%.
 - Misleading info: €7.5M or 1%.
- Whichever is higher in each case.
For SMEs, whichever is lower.*

IN THIS CHEAT SHEET

1. Key facts, seven principles, and the full compliance timeline
2. Who is affected: provider versus deployer
3. The risk pyramid: four tiers plus GPAI
4. Unacceptable risk
5. High risk
6. Limited risk
7. Minimal risk
8. General-purpose AI models
9. The conformity assessment workflow
10. Digital Omnibus on AI: where it stands
11. Beyond EU borders: global reach and Türkiye snapshot
12. Non-EU organization checklist
13. Deployer to provider, and the emotion recognition test

SEVEN CORE PRINCIPLES

01 Human agency & oversight

02 Technical robustness & safety

03 Privacy & data governance

04 Transparency

05 Diversity, non-discrimination & fairness

06 Societal & environmental well-being

07 Accountability

COMPLIANCE TIMELINE · UPDATED MAY 2026

2024	AUG	Entry into force AI Act officially in force. Preparation phase begins.	
2025	FEB	Prohibitions + AI literacy Banned AI practices enforced. Article 4 AI literacy obligation active for providers and deployers.	
2025	AUG	GPAI obligations + governance GPAI obligations active. Member States designate authorities. Code of Practice draft.	
2026	AUG	Annex III high-risk + Article 50 transparency applies regardless of Omnibus. Annex III high-risk applies in full unless an Omnibus text reaches the Official Journal first.	OPERATIONAL DEADLINE
2027	AUG	Annex I high-risk AI embedded in regulated products: medical devices, machinery, toys, vehicles. This date applies unless the Omnibus is adopted and shifts it to August 2028.	ORIGINAL DEADLINE
2027	DEC	High-risk Annex III (under Omnibus) Stand-alone high-risk AI: biometrics, employment, critical infrastructure. This date applies only if the Omnibus is adopted.	OMNIBUS-DEPENDENT
2028	AUG	High-risk Annex I (under Omnibus) AI embedded in regulated products: medical devices, automotive, toys. Conditional on Omnibus adoption; under the original AI Act this is 2 August 2027.	OMNIBUS-DEPENDENT

Who is affected?

Provider (developer). **Deployer** (user). **Importer**. **Distributor**. **Authorized representative**.

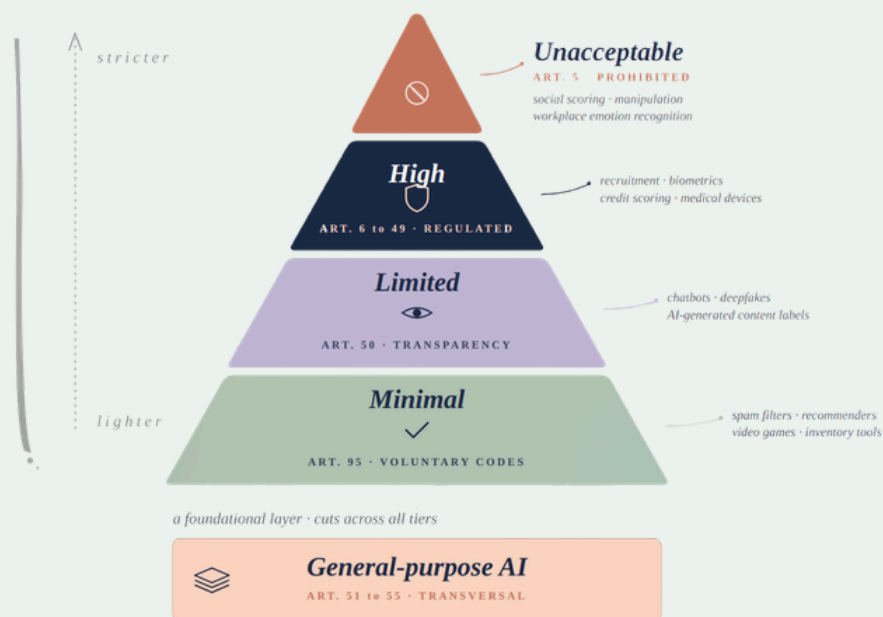
Anyone placing or using AI in the EU market, including non-EU entities. If your AI output is used in the EU, you are in scope.

PROVIDER VS DEPLOYER

	Provider (developer)	Deployer (user)
Who?	Develops or places AI on market	Uses AI in own operations
Conformity assessment	Mandatory	No (supports provider)
Risk management	Build and maintain	Monitor and report
Post-market monitoring	Mandatory	Incident reporting
AI literacy training	Must provide to staff	Must provide to staff

Risk pyramid: 4 tiers + GPAI

The AI Act's central architecture. Each tier (next slides) carries different obligations and penalties. GPAI cuts across all tiers as a foundational layer.



HOW TO READ THIS

Risk-based hierarchy

The higher up the pyramid, the stricter the rules. Top: prohibited outright. Bottom: voluntary codes only.

Article-anchored

Each tier corresponds to specific articles in the Act. Click any reference in this deck to jump to the official text.

GPAI is transversal

General-purpose AI is regulated as GPAI in its own right, AND at the tier of every downstream system using it.

PROHIBITED

Article 5

Unacceptable risk

Practices considered a clear threat to safety, livelihoods, and fundamental rights. Banned outright. No compliance pathway, no exception for low-impact deployment.

OBLIGATIONS

- Banned on placement, putting into service, and use
- Applies equally to providers, deployers, importers, distributors
- AI literacy obligation (Art. 4) applies in parallel

EXAMPLES

- Subliminal techniques causing harm
- Exploitation of vulnerabilities (age, disability, socio-economic)
- Social scoring by public or private actors
- Untargeted facial image scraping for biometric databases
- Emotion recognition in workplaces and schools
- Real-time remote biometric ID in public spaces, with narrow law-enforcement exceptions
- Predictive policing based solely on profiling
- Biometric categorization inferring sensitive attributes
- AI generating non-consensual intimate imagery (Omnibus position)

TIMELINE

2 Feb 2025

- Prohibitions take effect across the EU
- AI literacy obligation (Art. 4) applies to all providers and deployers

Ongoing

- Enforcement by national market surveillance authorities

PENALTY

Up to €35M or 7% of global annual turnover

whichever is higher

For SMEs, whichever is lower applies

Art. 99(3)

REGULATED

Articles 6 to 49

High risk

Systems with significant adverse impact on health, safety, or fundamental rights. The heart of the AI Act's compliance architecture.

OBLIGATIONS

- Risk management system (Art. 9)
- Data governance (Art. 10)
- Technical documentation (Art. 11)
- Logging and record-keeping (Art. 12)
- Transparency to deployers (Art. 13)
- Human oversight (Art. 14)
- Accuracy, robustness, cybersecurity (Art. 15)
- FRIA for Annex III deployers (Art. 27)
- Conformity assessment, CE marking, EU database registration
- Post-market monitoring + serious incident reporting

EXAMPLES

- Annex I: medical devices, vehicles, machinery, toys, lifts, radio equipment
- Annex III: biometrics, critical infrastructure, education and vocational training
- Annex III: employment and worker management, essential services, law enforcement
- Annex III: migration and border control, justice and democratic processes

TIMELINE

2 Aug 2026

- Annex III high-risk applies (original)

2 Aug 2027

or 2 Dec 2027 under Omnibus

- Annex I high-risk applies (original)

2 Aug 2030

or 2 Aug 2028 under Omnibus

- Legacy high-risk in public sector must comply

PENALTY

Up to €15M or 3% of global annual turnover

whichever is higher

For SMEs, whichever is lower applies

Art. 99(4)

TRANSPARENCY

Article 50

Limited risk

Systems that interact with humans or generate synthetic content. No design constraints. Only an obligation to disclose, so users can decide what they are seeing or talking to.

OBLIGATIONS

- Inform users they are interacting with AI (chatbots)
- Disclose use of emotion recognition or biometric categorization to subjects
- Mark AI-generated synthetic content in machine-readable format
- Label deepfakes clearly
- Label AI-generated text on public-interest matters (editorial control exception)

EXAMPLES

- Chatbots and conversational AI
- Emotion recognition systems where permitted
- Biometric categorization where permitted
- AI-generated or manipulated audio, image, video, including deepfakes
- AI-generated text on matters of public interest

TIMELINE

2 Aug 2026

- Article 50 transparency obligations apply
watermarking may shift to Nov 2026 / Feb 2027 under Omnibus

Ongoing

- AI Office may approve voluntary codes of practice

PENALTY

Up to €15M or 3% of global annual turnover
whichever is higher

For SMEs, whichever is lower applies

Art. 99(4)

VOLUNTARY

Article 95

Minimal risk

The vast majority of AI systems used in the EU. No mandatory AI Act obligations. Voluntary codes of conduct are encouraged, and other laws still apply.

OBLIGATIONS

- No mandatory AI Act obligations for this tier
- Voluntary codes of conduct encouraged (Art. 95)
- GDPR / KVKK and data protection law continue to apply
- Sector regulation (financial, medical, consumer) still applies
- Product safety and liability rules still apply

EXAMPLES

- Spam filters
- AI-enabled video games
- Inventory management systems
- Basic recommender systems without manipulation
- Most enterprise productivity AI

TIMELINE

Not applicable

- No regulatory triggers under the AI Act for this tier

2 Aug 2026

- Voluntary codes mechanism becomes operational under the AI Office

PENALTY

No AI Act penalty

Other regulators retain full jurisdiction (DPAs, sector supervisors)

RISK
PYRAMID

Foundational layer · cuts across all tiers

TRANSVERSAL

Articles 51 to 55

General-purpose AI models

GPAI sits beneath the pyramid as a foundational layer. It cuts across every tier: a foundation model is regulated as GPAI in its own right, then again at the tier of every downstream system using it.

ALL GPAI PROVIDERS

Art. 53

- Maintain technical documentation of the model
- Provide information to downstream providers integrating the model
- Comply with EU copyright law (text and data mining exceptions)
- Publish detailed summary of training data using the Commission template

GPAI WITH SYSTEMIC RISK

Triggered at 10^{25} FLOPs cumulative training compute, or by Commission designation.

- Notify the Commission within two weeks
- Standardised model evaluations including adversarial testing
- Assess and mitigate systemic risks at EU level
- Track and report serious incidents to the AI Office
- Cybersecurity of model and physical infrastructure

Open-source GPAI: lighter obligations on documentation. If classified as systemic-risk, full obligations apply.

TIMELINE

2 Aug 2025

- GPAI obligations apply for new models placed on market

2 Aug 2025

- AI Office begins operations; Commission may designate systemic-risk models

2 Aug 2027

- Existing GPAI models placed before 2 Aug 2025 must come into compliance

PENALTY

Up to €15M or 3% of global annual turnover
whichever is higher

For SMEs, whichever is lower applies

Art. 101

CONFORMITY ASSESSMENT WORKFLOW · FOR HIGH-RISK PROVIDERS AND DEPLOYERS

Classify the system

01

Determine whether your AI is high-risk under Annex I or Annex III. Document the reasoning. Art. 6.

[Read article](#)

Build the requirements

02

Risk management, data governance, technical documentation, logging, transparency, human oversight, accuracy. Art. 9 to 15.

[Read article](#)

Conformity assessment

03

Internal control (Annex VI) for most systems. Third-party (Annex VII) for biometric and certain Annex I cases. Art. 43.

[Read article](#)

EU declaration + CE marking

04

Sign the EU declaration of conformity. Apply CE marking. Register in the EU database. Art. 47, 48, 49.

[Read article](#)

FRISA (deployers, Annex III)

05

Deployers in regulated sectors must conduct a Fundamental Rights Impact Assessment before first use. Art. 27.

[Read article](#)

Post-market monitoring

06

Ongoing surveillance of system behaviour. Serious incident reporting within 15 days. Art. 72, 73.

[Read article](#)

Digital Omnibus on AI: where it stands

Trilogue collapsed 28 to 29 April 2026 over Annex I scope. New round expected mid-May. Until OJ publication, the original 2 August 2026 deadline remains the operational reference.

IN FLUX

What happened on 28 to 29 April

The second and final-planned trilogue between [Parliament](#), [Council](#) and [Commission](#) opened on 28 April and broke down at 2 a.m. on 29 April. Parliament wanted to remove **Annex I AI** (medical devices, machinery, toys, connected vehicles) from the AI Act's direct scope and leave it to sectoral regulation ([MDR](#), [Machinery](#), [RED](#)). [IAPP coverage](#).

Legal reality. Until the Omnibus is published in the [Official Journal](#), nothing changes. The 2 August 2026 deadline remains in force for Annex III high-risk and [Article 50](#) transparency.

What's next. Third trilogue mid-May. On 30 June, [Council presidency rotates to Ireland](#).

IN LAW TODAY VS PROPOSED AMENDMENTS

Domain	In law today	Commission	Council	Parliament
Prohibited AI	8 distinct prohibited practices	No changes	+ Ban on non-consensual intimate imagery, CSAM	+ Ban on AI generating non-consensual intimate imagery
High-risk timeline	Annex III: Aug 2026; Annex I: Aug 2027	Conditional: 6m post-standards or backstop Dec 2027 / Aug 2028	Fixed: Dec 2027 (III) + Aug 2028 (I), irrespective of standards	Fixed: Dec 2027 (III) + Aug 2028 (I)
Transparency	Art. 50 from Aug 2026	Watermarking postponed to Feb 2027	Postponed to Feb 2027	Postponed to Nov 2026
AI literacy	Providers and deployers: 'sufficient level' (Art. 4)	Remove; Commission-led framework	Remove but targeted reqs for high-risk	Soften to 'support improvement'
EU AI Office	Shared with national regulators	Exclusive for GPAI systems (same provider)	Exceptions: law enforcement, finance	Exceptions: critical infra; not 'exclusive'

3 SCENARIOS AHEAD · AFTER THE 28 TO 29 APRIL COLLAPSE

A

UNCERTAIN

May restart succeeds

CONDITION

Third trilogue mid-May produces agreement; Omnibus reaches the OJ before 2 August 2026.

EFFECT

Annex III deadline shifts to 2 December 2027. Annex I shifts to 2 August 2028.

B

No agreement

CONDITION

Trilogue fails again or text not finalised in time; nothing reaches the OJ before 2 August 2026.

EFFECT

Original deadlines apply in full. Annex III high-risk: 2 August 2026. Annex I: 2 August 2027.

C

UNCERTAIN

Ireland takes presidency

CONDITION

Cyprus's Council presidency ends 30 June 2026 Ireland takes over and negotiations may reset.

EFFECT

Direction of any subsequent text uncertain. Continue to plan to the original 2 August 2026 deadline.

With the trilogue collapsed, **Scenario B is the legally controlling assumption** until a text reaches the Official Journal. Treat the original 2 August 2026 deadline as the operational target. *Re-evaluate only after a new trilogue produces a text that reaches the OJ.*

PRACTICAL ACTIONS WHILE OMNIBUS IS PENDING

Article 50 transparency

Content marking and user notification infrastructure should be production-ready.

Annex I embedded systems

Track AI Act and sectoral regulation (MDR, Machinery, RED) in parallel.

High-risk system inventory

Determine whether each system falls under Annex III. Begin conformity assessment.

Standards monitoring

CEN-CENELEC AI standards may be reshaped. Watch which standards get prioritised.

Beyond EU borders: global reach + checklist

The AI Act reaches further than its name suggests. A non-EU operator's view, with a closing look at Türkiye.

WHO OUTSIDE THE EU IS AFFECTED?

Extraterritorial scope

Any non-EU company whose AI system is placed on market, put into service, or whose output is used in the EU, regardless of where the company is based. Art. 2.

Mandatory EU representative

Non-EU providers of high-risk AI or GPAI models must appoint an authorized representative established in the EU.

The Brussels Effect

Like GDPR, the AI Act is becoming a de facto global standard. Companies across jurisdictions increasingly adopt AI Act compliance as a baseline.



Türkiye: Brussels Effect + voluntary alignment

No binding AI law in force. Türkiye's current frame rests on strategic documents and soft-law guidance, with EU AI Act compliance fully required for Turkish companies serving the EU market via the [Brussels Effect](#).

PRIMARY SOURCES IN FORCE TODAY

National AI Strategy 2021 to 2025.

Strategic frame issued by the Digital Transformation Office (CBDDO). The 2024 to 2025 Action Plan (July 2024) commits to a national AI regulation aligned with international norms.

Medium-Term Programmes (OVP)

OVP 2025 to 2027 and OVP 2026 to 2028 explicitly target legislative alignment with the EU AI Act. A commitment, not enacted law.

KVKK Generative AI Guide

Non-binding guidance from the data protection authority on generative AI: privacy-by-design, transparency, lawful basis. Used as a baseline in audits.

TÜBİTAK AI Policy v1.0 (March 2026)

Institutional framework for organizational integration and technical standards. Sectoral / institutional reach, not a national binding regulation.

Practical consequence for Turkish companies. Any provider, deployer, importer or distributor whose AI output is used in the EU is directly subject to the AI Act. Customs Union exposure on Annex I products makes CE marking and conformity assessment unavoidable for EU exports.

NON-EU ORGANIZATION CHECKLIST

- | | | | | | |
|----|-------|---|----|-------|--|
| 1 | NOW | Determine if AI systems produce output used in the EU | 2 | NOW | Inventory all AI systems, classify by risk tier |
| 3 | NOW | Check for prohibited practices, cease if found | 4 | 2026 | Appoint EU authorized representative (high-risk, GPAI) |
| 5 | 2026 | Check GPAI transparency and documentation obligations | 6 | 2026 | Establish risk management and data governance (high-risk) |
| 7 | 2026 | Design human oversight mechanisms | 8 | 2026 | Build technical documentation and logging |
| 9 | STRAT | Launch AI literacy programme | 10 | STRAT | Prepare conformity assessment (Dec 2027 likely) |
| 11 | STRAT | Assess local law intersection (KVKK, LGPD, PIPL) | 12 | STRAT | Monitor Omnibus trilogue, adjust only after OJ publication |

Deployer to provider + emotion recognition test

Two of the most ambiguous classification questions in the AI Act, walked through step by step.

HOW DEPLOYERS BECOME PROVIDERS OF HIGH-RISK AI

It is relatively easy for a deployer to inadvertently become a provider, and compliance obligations differ significantly. Answer YES to any question and you could become the provider. [Article 25](#).

- 1 Have you put your name or trademark on a high-risk AI system?**
You become the provider, unless the original provider agreement says otherwise.
- 2 Have you made a 'substantial modification' to a high-risk AI system?**
If the modification changes intended purpose OR breaks compliance, you become provider of a new high-risk system.
- 3 Have you modified the 'intended purpose' of a non-high-risk AI, making it high-risk?**
You become the provider. Even mere usage in a high-risk context could trigger this. The Act does not clarify the boundary.

Key takeaway: when using an AI system in a high-risk category, use a system specifically designed, intended, and configured for that purpose.

IS YOUR EMOTION RECOGNITION SYSTEM PROHIBITED?

YES to all 4: most likely PROHIBITED.
NO to all 4: most likely not prohibited.
YES or MAYBE to all 4: may constitute a prohibited practice.
YES to Q1 to 3 plus NO to Q4: most likely **HIGH-RISK**, not prohibited.

- 1 Is the AI system in scope of the EU AI Act?**
If placed on market, put into service, or outputs used in the EU, it is in scope.
- 2 Does the AI system evaluate biometric data?**
Art. 3(39): emotion recognition requires biometric data (tone of voice, facial expressions, body language).
- 3 Does the AI system infer emotions or intentions?**
Emotions: happiness, sadness, anger, surprise, disgust, embarrassment, excitement, shame, satisfaction.
Physical states (pain, fatigue) are NOT emotional inference.
- 4 Is it used in workplace or education without valid exception?**
Prohibition applies to workplace and education. Medical and safety exceptions exist. If not in these settings, the system is high-risk, not prohibited.